Participation Liability Waiver & Assumption of Risk

Alpha Summer Camp 2026 — Week 9, The Trojan Horse Build

Operated by S&Co LLC (Fluō)

Program Location:
Jewish Center of the Hamptons
44 Woods Lane, East Hampton, NY 11937
Construction takes place **outdoors**, on the field adjoining the facility.

Program Partner:
Alpha School (Alpha Summer Camp)

Program Contact:
Manuel Perez Luna — manuel@fluoatelier.com (Fluō)

Program Dates: **Monday, August 24, 2026 – Friday, August 28, 2026**

Cohort: **All camp levels, Lower Levels (LL) through High School (HS). Ages 4 to 14.**

Fluō workshops are instructional in nature. Participants receive structured teaching in timber construction and traditional wooden joinery under the supervision of Fluō instructors, as part of the **Alpha School** Summer Camp held at the Jewish Center of the Hamptons.

Please read Sections 4, 5, and 6 carefully. This program is materially different from a bench workshop. The whole camp builds **one large freestanding wooden structure** together, outdoors, over five days, and campers climb into and work inside that structure once it stands.

There is no fire. The completed structure will **not** be burned, and there is no ignition, flame, or pyrotechnic element in this program at any point.

1. Participant Information

If the participant is under 18 years of age, this waiver must be completed and signed by a parent or legal guardian.

Participant Name: ______________________________

Date of Birth: ______________________________

Age: ________

Grade Level / Camp Level (LL, L1, L2, MS, HS): ____________________

2. Parent / Legal Guardian Information

(Required if participant is under 18 years of age)

By signing below, I confirm that I am the **parent or legal guardian** of the participant named above and that I have **full legal authority** to execute this waiver on the participant's behalf.

Name: ______________________________

Relationship to Participant: ______________________________

Phone: ______________________________

Email: ______________________________

3. Emergency & Medical Information

Emergency Contact Name: ______________________________

Emergency Contact Phone: ______________________________

Medical Conditions / Allergies / Sensitivities:

Including asthma or any respiratory condition; any sensitivity to **cedar dust**; any **dairy or milk-protein allergy**, because the paint used is a traditional casein milk paint; any insect-sting allergy, because the work is outdoors; and any condition affecting balance, vision, or the ability to climb a ladder or work at height.

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☐ None known

Medications the Participant Takes:

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☐ None

Tetanus Status:

This program involves puncture-capable wooden fasteners and outdoor work. Please note the date of the participant's most recent tetanus immunisation if known.

Date (or "unknown"): ______________________________

In the event of injury or illness, the program will make **reasonable efforts to contact the parent or legal guardian and/or emergency contact** prior to seeking medical treatment when practicable.

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4. Description of Activities

Over the five days of the program, the entire camp works together to design, build, raise, and finish **one Trojan horse**: a single freestanding wooden structure.

The Structure

- Approximately **14 feet tall** and **14 feet long**, up to 4.5 feet wide
- Approximate finished weight **670 pounds**
- Standing on **four raked cedar leg rounds**, with roughly **5 feet of open ground clearance** beneath the body
- The **floor of the body therefore sits about 5 feet above the ground**, and the top of the body about 10.5 feet above the ground
- Built from **untreated Northern white cedar**, joined with **oak dowels and tapered oak and beechwood nails** and **natural sisal and hemp rope**. There are no metal fasteners, no adhesives, and no chemical finishes
- Finished in **non-toxic casein milk paint**

What Participants Do

I understand that the participant will be involved in **hands-on outdoor timber construction**, including but not limited to:

- Reading plans, identifying numbered and colour-coded parts, measuring, marking, and layout
- **Hand-sanding** cedar boards and beams to knock down splinters before assembly
- **Lifting, carrying, passing, and positioning timber as a team**, including cedar beams up to 12 feet long and cedar leg rounds up to 8 feet long
- Driving **tapered wooden nails** into pre-drilled holes with **mallets and hammers**
- **Drilling** pilot, peg, and cladding holes with **cordless drills** **(Level 2, Middle School, and High School participants only, meaning grade 4 and above)**
- **Chiselling** mortise-and-tenon joints for the ladder and window frames, **cutting boards with hand saws**, and **carving and shaping wood with hand carving knives** for decorative detail on the horse **(selected participants who have demonstrated proficiency, under one-to-one adult supervision)**
- Assembling the base platform, the upper band, the body frame, the ridge and supports, the neck, the head, the windows, the ladder, and the legs

- **Cladding** the body, head, and floor with numbered planks, including work overhead and at height
- **Braiding, wrapping, and lashing** natural sisal and hemp rope for the mane and lashing points
- Mixing milk-paint powder with water and **painting** the finished structure
- **Raising the finished horse** on the final day, as a whole-camp team lift, and fitting its legs. See Section 6
- Climbing a camper-built wooden ladder and purpose-built wooden step boxes, used to reach the upper body while the horse is on the ground and, after the raise, for supervised entry. See Section 6
- Team relays, games, a closing parade, and an awards ceremony on the same outdoor field

How the Build Is Sequenced

All construction work is carried out with the body of the horse resting at ground level. The platform, frame, neck, head, windows, cladding, floorboards, rope work, and paint are all completed while the structure is low and supported on the ground. **The legs are fitted last.**

The horse is raised onto its legs once, on the final day, as a single whole-camp operation, described in Section 6.

Once the horse stands on its legs, no construction work of any kind is performed inside it, beneath it, or on it. The build is finished before it goes up.

Who Uses What

Tool access is assigned by Fluō staff and is calibrated to each participant's age, camp level, experience, and demonstrated competence. It is not uniform across the camp, and it is not granted by age alone.

- **Every participant, at every age, is taught to use a hammer and mallet safely**, and will use one. This is the universal skill of the program
- All participants sand, handle and lash rope, place and pass timber, and paint
- **Cordless drills:** Level 2, Middle School, and High School only, meaning grade 4 and above
- **Edge tools, meaning carving knives, chisels, and hand saws:** restricted to **individual participants who have demonstrated proficiency to Fluō staff** and who are working under **one-to-one adult supervision**. Being old enough does not by itself grant access, and access granted for one task may be withdrawn at any time at staff discretion

Every participant, at every age, works alongside a structure being built with all of these tools, and is therefore exposed to the risks described below whether or not they personally operate a given tool.

5. Tools, Equipment & Materials Acknowledgement

I acknowledge that the participant may use, work alongside, or be exposed to the following tools and materials:

Hammers & Rubber Mallets (all ages)

- Used to drive tapered wooden nails and dowels home into pre-drilled holes. **Every participant in the camp, at every age, is taught to use a hammer and mallet and will use one, for extended periods.**

- Risks: **struck, bruised, pinched, or broken fingers and thumbs from missed or glancing blows**; impact injury from a dropped or swung tool, including to a neighbouring participant; wooden fragments or nail heads ejected under impact; wrist and forearm strain

Tapered Wooden Nails, Dowels & Pegs (all ages)

- Oak and beechwood tapered nails and oak dowels are the only fasteners in the structure. They are driven flush and, before they are, they protrude.
- Risks: **puncture wounds and scratches from protruding nail and dowel ends**, including at head and eye height inside the structure; splinters; snagged clothing; nails that split, shatter, or ricochet when struck off-axis

Cordless Drills and Driver Bits (Level 2, MS, HS only, grade 4 and above)

- Battery-powered rotating hand tools used to bore pilot, peg, and cladding holes, including the tapered Kukari bit. Operated only with staff instruction, staff permission, and an adult present at the participant's shoulder.
- Risks: **drilling into the hand, finger, or leg supporting the workpiece**; **entanglement of hair, drawstrings, sleeves, jewellery, or lanyards in the rotating chuck or bit**; sudden torque reaction twisting or spraining the wrist when a bit binds; **snapped bits and ejected fragments**; hot bits and burns on contact; eye injury from ejected chips and dust; hearing exposure; crushed or pinched fingers when tightening the chuck; injury from an unsecured workpiece spinning free
- Safety glasses are provided by Fluō and are **required** for anyone operating or standing near a drill

The three tool blocks that follow are edge tools. They are restricted to participants who have demonstrated proficiency to Fluō staff and are working under one-to-one adult supervision. Access is granted individually, not by age or level, and may be withdrawn at any time.

Hand Carving Knives (selected proficient participants, 1:1 supervision)

- Sharp, fixed-blade hand knives used to carve and shape decorative detail into cedar for the horse.
- Risks: **cuts and lacerations to the hands and fingers, including deep cuts**, which are foreseeable in carving work even with proper technique; puncture wounds; injury from a blade that slips or skates off the grain; repetitive-motion strain; eye injury from flying chips
- **Cut-resistant gloves and thumb guards are provided by Fluō and are required during carving**

Wood Chisels (selected proficient participants, 1:1 supervision)

- Sharp edge tools driven with a mallet to cut the mortise-and-tenon joints for the ladder and window frames.
- Risks: **deep cuts and lacerations to the hands and fingers**; puncture wounds; injury from a chisel that slips or skates off the grain toward the supporting hand; **struck fingers from the driving mallet**; eye injury from flying chips

Hand Saws (selected proficient participants, 1:1 supervision)

- Non-powered saws used to cut cedar boards to length for the windows and cladding.

- Risks: **saw-tooth cuts and abrasions to the hand steadying the work**; deep cuts; injury from a blade that jumps or binds at the start of a cut; pinched fingers as an offcut falls; strain; eye injury from dust and chips

Other Non-Powered Hand Tools (selected proficient participants, 1:1 supervision)

- As the build progresses, staff may introduce further **non-powered** hand tools to individual participants who have demonstrated proficiency, for a specific task and under one-to-one supervision. These may include rasps, files, spokeshaves, hand planes, screwdrivers, pliers, clamps, mallets, squares, and measuring and marking tools.
- Risks: **cuts, abrasions, punctures, and pinch and crush injuries to the hands and fingers**; injury from a tool that slips off the work; struck fingers; splinters; strain; eye injury from chips and dust
- **No tool is ever introduced without instruction, demonstration, and supervision**, and no participant uses a tool they have not been taught to use

Sanding Blocks & Abrasives (all ages)

- Hand tools used to smooth cedar and remove splinters before assembly and paint.
- Risks: abrasions to fingers and knuckles, **splinters**, and wood-dust irritation to eyes, skin, and airways

Cedar Timber, Beams & Leg Rounds (all ages)

- Untreated Northern white cedar in dimensions up to 4x4 by 12 feet, plus debarked cedar leg rounds 6 inches in diameter and 8 feet long. Timber is carried, passed, raised, and held in position by teams of participants working together.
- Risks: **crush and impact injuries from dropped or swinging timber, including to hands, feet, and head**; **pinch and crush injuries between boards, frame members, and the ground**; back, shoulder, and muscle strain from lifting and carrying; trips and falls over stacked or staged material; **splinters, which in this program are frequent and expected**; scrapes and abrasions from rough-sawn edges; loose bark and debris; cedar dust, which can irritate the eyes, skin, and airways and can trigger symptoms in participants with asthma or cedar sensitivity

Sisal & Natural Hemp Rope (all ages)

- Approximately 300 feet of natural rope used for lashing, wrapping, handles, and braiding the mane.
- Risks: **friction and rope burns to the hands**; fibre splinters and skin irritation; **entanglement of fingers, limbs, or neck**; trip hazards from rope run across the working area; injury from a rope under tension that parts or releases suddenly; loads that shift when a lashing slips

Milk Paint & Brushes (all ages)

- Traditional powdered milk paint mixed on site with water and applied by brush. It is non-toxic and free of solvents, but it is **casein-based, meaning it is made from a milk protein.**
- Risks: **allergic reaction in participants with a dairy or milk-protein allergy**; inhalation of airborne pigment and powder during mixing; eye and skin irritation; paint marks on clothing and footwear; slips on spilled paint or water
- **Aprons are provided by Fluō and are worn by all participants on painting days**

Ladder & Wooden Step Boxes (all ages)

- A camper-built wooden ladder and purpose-built wooden step boxes are used to reach the upper body of the horse while it is on the ground, and, after the raise, as the supervised means of entry. See Section 6.
- Risks: **falls from the ladder or from a step box**; a box that tips, slides, or is stepped on off-centre; pinched fingers between rungs, boxes, and the structure; injury to people below from a fall or from a dropped object

I understand that these tools and materials **can cause injury if used improperly, and that some injuries, in particular splinters, scrapes, pinched fingers, and bruises, are common and expected in work of this kind even when every rule is followed.**

6. Ground-Level Building, Raising the Horse & Going Inside

This section describes the most significant risks in the program. Please read it in full.

6.1 The Build Happens on the Ground

Every construction task in this program is performed with the body of the horse resting at ground level. The base platform, the upper band, the frame, the supports and ridge, the neck, the head, the windows, the ladder, the cladding, the floorboards, the rope work, and the paint are all completed while the structure is low and supported on the ground. **The legs are fitted last.**

Participants therefore work at, or close to, ground level throughout the build. Step boxes and the ladder are used only to reach the upper body and ridge of the horse while it is down, under staff supervision.

6.2 Raising the Horse (Final Day, One Operation)

On the final day, the completed horse is **raised onto its legs in a single planned operation, carried out by the whole camp working together as one team.** This is the culminating moment of the program and it is also the moment of greatest risk.

I understand and acknowledge that:

- The structure being raised weighs **approximately 670 pounds**
- **At least eight participants, and typically many more, will be supporting the structure by hand at the same time**, at positions assigned by Fluō staff, alongside adult staff who carry the controlling load
- The raise lifts the body from ground level to a finished height of approximately **5 feet of clearance beneath it**, with the top of the body approximately 10.5 feet above the ground
- The legs are fitted while the body is held and supported

Risks specific to the raise:

- **Crush and impact injury if the structure drops, slips, tips, or is set down unevenly**, including injury to hands, feet, and torso
- **Sudden transfer of load if one or more participants lose grip, let go, stumble, or step away**, placing unexpected weight on those still holding

- **Pinch and crush injury between the structure, the legs, the blocking, and the ground**, particularly to fingers and toes
- **Back, shoulder, and muscle strain** from lifting and sustained supporting
- Injury from the structure swinging, rotating, or shifting while supported
- Trips and falls on uneven ground while carrying load
- Splinters and abrasions from gripping rough timber under load
- **Injury to anyone positioned beneath or in the fall path of the structure**. A structure of this height and weight on slender legs is top-heavy, and the direction in which it would fall is not predictable

Controls Fluō applies to the raise:

- The raise is **staff-led and staff-called**, with a single named person giving every instruction and count. No one lifts, moves, or releases except on that call
- Every participant is **assigned a specific position and grip point** before anything moves, and is briefed on where to stand and where not to
- **Adult staff carry the controlling load.** Participant support is distributed, deliberately over-staffed, and supplementary to the adults
- **No participant is positioned beneath the structure, inside it, or in its fall path at any point during the raise**
- An **exclusion zone** is set and cleared around the operation, and all participants not assigned to the raise are held outside it
- **Closed-toe shoes and gloves are required** for every participant taking part in the raise
- The structure is **blocked and cribbed, not held by hand**, while the legs are fitted
- Staff may stand any participant down from the raise, or stop the raise entirely, at any moment and without explanation

6.3 Once the Horse Is Standing

Once the horse is raised onto its legs, no construction work of any kind is performed inside it, beneath it, or on it. No participant hammers, drills, chisels, saws, clads, paints, lashes, or carries out any other task inside or beneath the standing structure. **The build is complete before the horse goes up.**

After the raise, any time a participant spends inside the body of the horse is **supervised, non-working entry only**, for the closing ceremony, photographs, and the experience of being inside what the camp built. That entry is subject to the following:

- **No participant enters or goes beneath the standing structure until Fluō staff have inspected it and declared it open**
- A **staff member is stationed at the base of the ladder whenever the interior is open**, and enforces a fixed maximum number of participants inside at any one time
- **One participant on the ladder at a time**, climbing facing the ladder, with three points of contact, with a staff member holding the ladder
- Ladders and step boxes are **placed, levelled, and held by staff**. Participants do not move, stack, or reposition them

- **No tools go into or beneath the standing horse.** Nothing is carried up by hand and nothing is thrown or dropped from it
- **No climbing on the exterior frame, legs, neck, head, or roof at any point, at any age, for any reason**
- No pushing, pulling, shaking, swinging on, or hanging from the structure
- The interior is closed and access removed whenever staff are not supervising it

Risks of being inside the standing horse:

- **Falls from height**, from the ladder, from a step box, from the belly floor, or through a window or hatch opening, from approximately 5 feet, and **injuries resulting from such falls, including fractures, head injury, and concussion**
- **Head strikes inside a confined interior**, on the ridge beam, ribs, cladding, frame members, and dowel and nail ends
- **Pinch, crush, and trap injuries** between boards, frame members, the floor, and the ladder
- **Difficulty or delay exiting the interior**, particularly in a hurry, in a crowd, or by a young or distressed participant
- Crowding, jostling, and falls caused by other participants inside or on the access ladder
- Objects falling from the structure onto people below
- Movement, tipping, or collapse of the standing structure
- Splinters and abrasions from rough interior surfaces at close quarters

I acknowledge that **even with these controls in place, the risk of a fall, a crush injury during the raise, and a serious injury generally cannot be eliminated**, and I accept that risk on the participant's behalf.

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7. Assumption of Risk

I understand that the participant's involvement in outdoor timber construction involves **inherent risks**, even when safety procedures are followed and staff supervision is provided. These risks include, but are not limited to:

- **Splinters, scrapes, and abrasions, which are frequent and expected in this program**
- **Struck, pinched, crushed, or fractured fingers, thumbs, hands, and toes**
- **Cuts and lacerations, including deep cuts, from carving knives, chisels, saws, and drill bits**
- **Puncture wounds from wooden nails, dowels, and drill bits**
- **Falls from the ladder, step boxes, or the interior of the standing structure, and injuries resulting from such falls, including fractures, head injury, and concussion**
- **Injury from falling tools, timber, or materials**
- **Crush, pinch, and impact injury during the whole-camp raising of the horse, including from a dropped, slipping, swinging, or unevenly set-down load, and from the sudden transfer of weight if another participant loses grip or lets go**
- **Crush and impact injury from dropped, swinging, or shifting timber, and from the structure itself moving, tipping, or collapsing**

- Rope burns, friction injuries, and entanglement
- Eye injuries from dust, chips, splinters, paint, and debris
- Back, shoulder, wrist, and muscle strain from lifting, carrying, hammering, and repetitive work
- Respiratory or skin irritation from cedar dust, paint powder, and natural fibres, including aggravation of asthma
- Allergic reaction, including to casein milk paint, to natural wood and fibre, and to outdoor exposures
- **Outdoor and environmental risks**, including sun exposure, sunburn, heat exhaustion and dehydration, biting and stinging insects and ticks, uneven and soft ground, wet or slippery surfaces, and sudden changes in weather
- Collisions, trips, and falls arising from other participants working in the same area
- Paint or wood marks on clothing and footwear

I knowingly and voluntarily **assume all inherent risks** associated with the participant's participation in the program.

8. Safety Rules & Conduct

I agree that the participant will comply with all safety rules and all staff instructions, including but not limited to:

Personal Protective Equipment (PPE)

- **Safety glasses** worn at all times in the build area
- Work gloves worn for timber handling and rope work as directed by staff
- **Cut-resistant gloves and thumb guards worn during carving**
- **Aprons worn during painting**
- Additional PPE as instructed by staff

Clothing & Footwear

- **Closed-toe shoes are required.** No sandals, no open footwear, no bare feet, at any time in the build area
- Long hair tied back
- **No loose clothing, drawstrings, hoods, scarves, jewellery, bracelets, or lanyards near drills, rotating tools, or rope work**
- Sun protection and a filled water bottle each day

Tools

- **No tool is picked up or used without staff instruction and staff permission**
- Tools are used only for their intended purpose, and only in the area assigned for them
- Workpieces are clamped or held by staff before drilling, chiselling, or sawing
- **Cordless drills are operated only by Level 2, Middle School, and High School participants, only with an adult at their shoulder**

- **Carving knives, chisels, and saws are used only by participants staff have judged proficient, only under one-to-one adult supervision, and only in the area assigned for edge-tool work**
- **Always carve and cut away from the body and away from the hand holding the work**, and keep a clear working distance from others
- Knives and chisels are set down on the bench when not in use and are never carried around the site with the edge exposed
- **No participant uses any tool they have not been taught and cleared to use**, however confident they feel
- Tools are set down on the bench or returned to the tool station when not in use, never left on the ground, on the structure, or where they can fall
- A clear working distance is kept from other participants when swinging a mallet or hammer

Lifting & Carrying Timber

- Long or heavy pieces are carried as a team, on a staff count, never alone
- Fingers are kept clear of the ends and undersides of boards as they are set down
- Timber is never thrown, dropped, or swung, and never carried on the shoulder through a crowd
- Nobody stands beneath a piece being lifted or positioned

Raising the Horse

- **The raise is staff-led and staff-called.** Nobody lifts, shifts, or releases except on the caller's instruction
- Every participant holds the position and grip point assigned to them, and does not swap or wander
- **If a participant needs to let go, they say so out loud before doing it**, and wait for staff to take the load
- **Nobody stands beneath the horse, inside it, or in its fall path during the raise**
- Participants not assigned to the raise stay outside the exclusion zone
- Closed-toe shoes and gloves are worn by everyone taking part
- Hands and feet stay clear of the legs, the blocking, and the underside as the horse is set down

The Standing Horse

- **No building work of any kind is done inside, beneath, or on the horse once it stands.** No tools go in or under it
- **Nobody enters or goes beneath the horse until staff open it**, and only with a staff member at the ladder
- One participant on the ladder at a time, facing the ladder, three points of contact
- Participants do not move, stack, or climb on the step boxes except as staff direct
- **No climbing on the frame, legs, neck, head, or roof of the horse at any time**
- Nothing is thrown or dropped from the structure, and nothing is carried up by hand
- No pushing, pulling, shaking, hanging on, or roughhousing on or around the structure
- The exclusion zone is respected whenever staff call it

Site & General Conduct

- Follow staff directions immediately and without argument

- **Report every injury at once, however minor, including every splinter**
- No running, chasing, or horseplay in the build area
- Stay within the assigned working area and out of areas staff have closed
- Keep the working area clear of offcuts, rope, and tools
- Drink water regularly and tell staff if feeling unwell, overheated, or tired

Failure to follow safety rules may result in the participant's **removal from an activity or from the program**.

9. Medical Authorization

I authorize **S&Co LLC** and its staff to:

- Provide basic first aid, including cleaning and dressing minor cuts and abrasions, and **the removal of surface splinters**
- Seek emergency medical treatment if deemed necessary

I understand that I am **financially responsible for all medical costs** incurred.

I understand and agree that S&Co LLC and the program do not provide health or accident insurance for the participant, and that I am solely responsible for obtaining and maintaining such insurance coverage and for all medical costs incurred in connection with any injury or illness.

10. Release, Waiver & Indemnification

RELEASE OF LIABILITY FOR ORDINARY NEGLIGENCE

To the fullest extent permitted by New York law, I, on my own behalf and on behalf of the participating minor, hereby release, waive, and discharge any and all claims against S&Co LLC, doing business as Fluō, its owners, officers, employees, instructors, volunteers, agents, and contractors; the Jewish Center of the Hamptons, as owner and operator of the facility and grounds; and Alpha School, and its owners, operators, officers, employees, and agents (collectively, the "Released Parties"), arising out of or relating to the participant's participation in the program, including the construction, raising, occupancy, and use of the Trojan horse structure, TO THE EXTENT such claims are based solely on the ordinary negligence of the Released Parties in their provision of instruction and supervision during program activities.

RESERVATION OF NON-WAIVABLE CLAIMS

This waiver does NOT apply to, and expressly reserves, any and all claims arising from or related to:

- Gross negligence, reckless conduct, or willful misconduct
- Intentional acts or fraud
- Violations of law, whether willful or negligent
- Any other conduct that cannot lawfully be released in advance under applicable New York law

Examples of conduct that may constitute non-waivable gross negligence include, but are not limited to: allowing children to use tools without the supervision required by Section 8; permitting a participant to use a carving knife, chisel, or saw without prior instruction, a proficiency check, and one-to-one adult supervision; permitting a participant to enter, occupy, or stand beneath the structure before Fluō staff have inspected and opened it, or while it is being raised or moved; permitting participants to take part in the raising of the structure without assigned positions, adult staff carrying the controlling load, or a cleared exclusion zone; directing participants to carry out construction work inside or beneath the structure while it stands on its legs; permitting use of equipment known to be defective or dangerous; failing to provide required safety equipment; intentionally disregarding the safety protocols set forth in Sections 6 and 8 of this Agreement; or demonstrating a reckless disregard for participant safety.

SCOPE OF RELEASE & INDEMNIFICATION

This release covers claims for personal injury, property damage, or wrongful death that I or the participant may suffer arising from the participant's participation in the program activities described in this Agreement and the inherent risks of those activities, except to the extent such release is prohibited by New York law. I further agree to indemnify and hold harmless the Released Parties from claims brought by third parties arising out of the participant's participation, except to the extent prohibited by law.

PARTICIPANT RESPONSIBILITY

I acknowledge that I am responsible for any damage to program property or injury to third parties caused solely by the participant's intentional violation of the program safety rules set forth in Section 8 of this Agreement, provided that such violation was not the result of inadequate supervision or instruction by program staff.

11. Governing Law & Venue

This agreement and any dispute arising out of or relating to this agreement or the participant's participation in the program shall be governed by and construed in accordance with the laws of the **State of New York**, without regard to its conflict-of-law rules.

Any legal action or proceeding arising out of or relating to this agreement or the participant's participation in the program shall be brought exclusively in the state or federal courts located in the **State of New York**, and I hereby consent to the personal jurisdiction of such courts and waive any objection based on improper venue or forum non conveniens.

12. Acknowledgement & Signatures

I acknowledge that:

- I have read and understand this agreement, including the tool-specific risks in Section 5 and the ground-level building, raising, and entry risks in Section 6
- I have had the opportunity to ask questions
- I am signing voluntarily and with legal authority

I specifically acknowledge that this program builds **one freestanding wooden structure approximately 14 feet tall and weighing approximately 670 pounds**; that **every participant is taught to use a hammer and mallet**; that from grade 4 upward participants use **cordless drills**; that participants whom staff judge proficient may, under one-to-one adult supervision, use **carving knives, chisels, hand saws, and other non-powered hand tools**; that participants **lift and carry timber as a team**; and that **splinters and minor injuries are expected**.

I further specifically acknowledge that **all building work is done with the horse at ground level**; that on the final day **my child may take part, alongside at least eight other participants and adult staff, in raising the approximately 670 pound structure onto its legs by hand**; that **no construction work is performed inside or beneath the horse once it stands**; and that **my child may afterwards climb a ladder and step boxes for supervised, non-working entry into the body of the structure at a floor height of approximately 5 feet above the ground**. I understand and accept the risks these activities carry.

Parent / Legal Guardian Signature

(Required if participant is under 18 years of age)

Participant Name: ____________________________________

Signature: ____________________________________

Printed Name: ____________________________________

Date: ____________________________________